THE STATE

versus

NGQABUTHO SIBANDA

HIGH COURT OF ZIMBABWE
MUTEVEDZI J
BULAWAYO, 27 November 2025

Criminal Review Judgment

MUTEVEDZI J: The chances that an offender may commit several separate crimes in a single criminal transaction are usually high. That danger manifested in this case. Preferring to charge the offender with each of such offences will usually offend the rule against splitting of charges. To ameliorate the prejudice to both the accused and the victims, prosecution must charge the most serious crime out of that criminal transaction.

[1] In this case, what happened is that on 2 October 2025 and at Sithaba Banda's homestead, Goho village in Tshbazela under Chief Manguba the offender unlawfully entered into the complainant's bedroom hut by opening an unlocked but closed door. Whilst inside the offender climbed onto the complainant's bed before fondling her breasts and vagina. The complainant woke from her slumber and realised what was going on. She bolted of the hut and sought refuge at her neighbours' place. The neighbours accompanied her back to her residence. They found the offender deep asleep in the complainant's bed and apprehended him. He was subsequently brought before the court of a provincial magistrate facing one count of unlawful entry into premises committed in aggravating circumstances as defined in terms of s131(1) as read with section 131(2)(a)(e) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the CODE"). He pleaded guilty but the plea was equivocal. It resulted in the trial court altering it to one of not guilty. A contested trial ensued after which the offender was convicted. He was sentenced to 24 months imprisonment with 6 months suspended on condition of future good behaviour.

[2] The above circumstances clearly speak to the issues I raised in the introductory paragraph. The offender broke and entered into the complainant's house. That conduct constituted unlawful entry into premises. Whilst inside he fondled the complainant's breasts and vagina. Section 131 (1) (a) provides that where a person is convicted of the crime of unlawful entry into premises in aggravating circumstances, he or she shall be liable to pay a fine not exceeding level 13 or twice the value of property stolen or damaged during the break in if the crime was committed in any of the aggravating circumstances described in subsection (2) of the same provision. Subsection (2) (d) in turn provides that an unlawful entry is aggravated if the offender committed or intended to commit some other crime apart from just breaking in. That certainly is the reason why the prosecutor and the trial magistrate both believed that it was enough for the offender in this case to be charged with the crime of unlawful entry into premises in aggravating circumstances.

[3] What however the trial court missed is the gravity of the crime that was ultimately committed. The offender fondled the complainant's breasts and her vagina. When she was giving evidence, and describing what the offender did, the complainant stated that: -

> "I then saw the accused person getting on top of the bed, after that, he then knelt on the bed, he opened the blankets. He held my younger sibling's hand. He let go of my younger sibling's hand. He proceeded to fondle my breasts. Proceeded to then touch my private parts. I was wearing a skin tight. He then put his hand into my vagina. I pushed away his hand and got out of the bed searching or looking for my shoes. In the section for the shoes Your Worship, I was unable to find them, therefore I then left the house exiting through the sitting room. I ran to were the member of the police watch resides."

[4] Section 66 of the Criminal Law (Codification and Reform) Act [Chapter 9:23] (The Code), creates the crime of aggravated indecent assault. It provides that: -

> (1) Any person who-
> (a) being a male person-
> (i) commits upon a female person any act, other than sexual intercourse or anal sexual intercourse, involving the penetration of any part of the female person's body or of his own body.
> (ii) …
> (b) …
> (i) …
> (ii) …
>
> Shall be guilty of aggravated indecent assault and liable for the same penalty as that provided for rape.

[5] Needless to state, rape attracts some of the severest punishments in the CODE. It attracts minimum mandatory sentences of 15 years imprisonment and a maximum of up to life imprisonment in instances where it is committed in aggravating circumstances. In any other cases, the offender must be punished with imprisonment of not less than 5 years imprisonment and not exceeding 15 years imprisonment. If those punishments are juxtaposed with the penalties for unlawful entry in aggravating circumstances there is no debate that unlawful entry, no matter how aggravated it could be, is a far lesser offence than aggravated indecent assault. I have reproduced s 66 and quoted a portion of the complainant's evidence above to demonstrate that the offender's conduct fell squarely into what is proscribed under s 66.

[6] The choice of a charge must never be guided by what happened first. Instead, and like I have already said, it must be decided by an accused's most dominant intent and the most serious crime that can be proved on the facts. I do not know what influenced the prosecution to prefer the charge of unlawful entry instead of the aggravated indecent assault which was the more serious crime. The result however is that a man who ought to have been sentenced to at least 15 years imprisonment escaped with a slap on the wrist.

[7] That the offender fondled the complainant's breasts and inserted his hand into her vagina was not challenged at all by him. His conduct was enough to ground a conviction for contravening s 66. He penetrated the child's womanhood with his finger. It was irrelevant whether or not he completed his purpose. See the case of *Brian Tapindwa* v *The State* HB97-09. The trial magistrate ought to have realised right at the beginning of the trial that a more serious charge could have been committed because the averments that he fondled the breasts and touched the complainant's vagina appeared in the charge itself. Thereafter, he was obligated to query the charge. Even if he had realised it at the time the complainant was testifying, there still remained mechanisms of correcting the issue. He could have resorted to the stopping and conversion of the trial in terms of s 54 (2) of the Magistrates' Court Act [Chapter 7:10]. See the case of *Noel Marimo v Mrs Mthombeni and Anor* HH163-23.

[8] When these proceedings were placed before me for review, I could not help but notice these glaring discrepancies. If the charge had not been ill-preferred, there wouldn't have been

anything else though to criticise the proceedings about. But the prejudice caused is there for everyone to see. The proceedings were therefore, not in accordance with real and substantial justice. Unfortunately, there is nothing that can be done at this stage to correct the miscarriage of justice pointed out. The offender is one lucky criminal. In the circumstances, I hereby withhold my certificate.

MUTEVEDZI J…….